



Tour Operator Contract Rates 2025

Lake Bogoria Spa Resort – Kabarak and
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Wish to take this opportunity to thank you and your company for the interest and business support to Lake Bogoria Spa Resort - Kabarak. In this respect we are pleased to offer the following comprehensive 2025 rates applicable to your Company.

Non-Resident Rates (US Dollars)

	<u>Regular Season 01/01/2025 to 31/12/2025 (Supplements applies on Easter Weekend) & December holidays from 22/12/2025 to 2/1/2026</u>			
	Occupancy	BB	HB	FB
Standard room	Single	59	75	103
	Double/twin	84	96	120
Executive room	Single	72	103	124
	Double/twin	109	120	150

Resident Rates (Kenya Shillings)

	<u>Regular Season 01/01/2025 to 31/12/2025 (Supplements applies on Easter Weekend) & December holidays from 22/12/2025 to 2/1/2026</u>			
	Occupancy	BB	HB	FB
Standard room	Single	5,500	6,600	7,700
	Double/twin	8,250	9,350	11,550
Executive room	Single	6,600	7,700	9,900
	Double/twin	10,450	11,550	14,300

FESTIVE SEASON RATES

All bookings over Easter period from holy Thursday to Easter Monday, and 22nd of December through Christmas to new year are subject to supplements as follows:

- Resident adults (13 Years and above) – Ksh 2,500 Per Person.
- Resident Child (13 Years and below) in own room. – Ksh 1,500 per Child •
- Resident Child (13 Years and below) sharing with an adult. Ksh 750 Per Child
- Non - Resident adults (13 Years and above) – US\$ 35 Per Person.
- Non - Resident Child (13 Years and below) in own room. – US\$ 25 per Child
- Non - Resident Child (13 Years and below) sharing with an adult. – US\$ 15 Per Child

Note: - Supplements are not commissionable and are charged on a daily basis.



- A minimum stay of 3 nights is applicable over the festive days as stated above

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TERMS AND CONDITIONS

1. PAYMENTS

Unless the Company has credit facilities with Lake Bogoria Spa Kabarak, the Company is required, subject to clause 3 above, to make full payment prior to arrival, failure to which Lake Bogoria Spa Kabarak reserves the right to treat the reservation as cancelled. We currently accept the following credit cards: Visa, Master Card, American Express and Diners International. Cheque payments will be accepted only if cleared in advance of arrival. Should payment not be cleared by the bank before guest arrival, Lake Bogoria Spa Kabarak reserves the right to request cash payment before a guest can check-in. The bank details are as follows: matters arising hereunder shall be determined in accordance with the laws and procedures of Kenya.

Kenya Shillings Account

Account Name: Lake Bogoria Spa Resort-Kabarak

Bank: Kenya Commercial Bank

Branch: Marigat

Account Number: 1310205361

Swift Code: KCB KENX

Currency: KSHs

2. RESERVATION STATUS

Reservations will be honoured with a voucher, an LPO or supporting document on official letterhead bearing the authorized signature advised to Lake Bogoria Spa Kabarak as set out in the Schedule hereto. Save for manifest fraud, anything appearing to have been signed by the authorized signatory shall bind the Company. Any change of signatories should be notified to Lake Bogoria Spa Kabarak and will take effect from the time it is received by Lake Bogoria Spa Kabarak. The exact taken up reservations by the Company along with the rooming list should be received by Lake Bogoria Spa Kabarak Sales/ Reservations Office prior to arrival of guests at Lake Bogoria Spa Kabarak.

3. RELEASE PERIOD AND CANCELLATION

Cancellations should be notified to Lake Bogoria Spa Kabarak's sales/reservations office verbally and followed by written notice of cancellation. Cancellation will be effective on the working day on which Lake Bogoria Spa Kabarak receives the written notice. Any reservations received after 5.00pm will be deemed to be received on the next working day. Reservations that are cancelled, reduced in length of stay or reduced in numbers are subject to Lake Bogoria Spa Kabarak prevailing Cancellation and No-Show Fees which are currently as follows:

0 – 7 days, 100% of entire stay

8 – 14 days, 50% of entire stay

15 – 35 days, 25% of entire stay

No show: 100% of entire stay

The number of days refers to the number of clear days between the cancellation date and the anticipated date of arrival of the guest (excluding the cancellation date and the date of arrival).

Lake Bogoria Spa Kabarak may cancel reservations in any of the following events:

If the Company fails to pay the deposit within 7 days of the due date; or

If Lake Bogoria Spa Kabarak reasonably believes that the Company's financial situation is such that the Company will not be able to honour its obligations under this agreement

4. DEPOSIT POLICY

Advance deposits where required by Lake Bogoria Spa Kabarak are calculated on the total value of the booking and are payable as follows:

50% due if booking is made 8 -14 days prior to arrival

100% due if booking is made 0 hrs - 7 days prior to arrival.

In the event that the Company fails to pay the deposit within 7 days of the due date (where bookings are made 8-14 days prior to arrival) or within 24 hours (where bookings are made 48hrs – 7 days prior to arrival) (as the case may be), Lake Bogoria Spa Kabarak may treat the reservation as cancelled by the Company.

5. RESERVATION GUARANTEES

Reservations must be guaranteed by means of cash, cheque, credit card or inter-bank transfer in such amount as required by Lake Bogoria Spa Kabarak from time to time and in any event not being less than the cost of one night's rate for the type of room reserved. Non-guaranteed reservations are subject to release by Lake Bogoria Spa Kabarak at 18:00hrs on the day of expected arrival.

6. RATE CONFIDENTIALITY

The agreed company rates are only valid for bona fide associates of the Company and may not be revealed to, or used to book for, third parties other than in accordance with the provisions of this clause. The rates agreed here must not be displayed directly over the internet or on third party websites but may be packaged together with airfare and/or other arrangements so that the Lake Bogoria Spa Kabarak rates herein are not transparent.

7. CHILDREN

A child in a baby cot (up 4 years old) sharing a room with an adult can stay free of charge. Children under 13 years staying in a separate room will be charged at seventy five percent (75%) of the applicable room rate & 50% for a child sharing a room with adult/s.

8. ARRIVAL AND CHECKOUT TIMES

Rooms are available for new arrivals from 12.00hrs on the scheduled arrival date. Check out time on the day of departure is 10.00hrs. Pre-booking is encouraged for early arrivals to guarantee rooms upon arrival and a prebooking will be subject to a full overnight rate.

9. DAY ROOM

Day room rate (subject to room availability) is at 75% of applicable rates. Check out time for day room use is 18:00hrs. Check-out after 18:00hrs are subject to the full room rate.

10. COMPLIMENTARY ROOMS

Lake Bogoria Spa Kabarak will subject to the availability of rooms grant matching complimentary rooms/ guests as follows



- Each 15 paying guests in a group the 16th person is free to a maximum of 2 single rooms.

11. GOVERNMENT TAXES

Lake Bogoria Spa Kabarak's rates include statutory taxes, levies and service charges. In the event that the Government of Kenya adjusts the prevailing or institutes a new tax regime during the duration of this agreement, Lake Bogoria Spa Kabarak reserves the right to adjust the rates contained in this agreement accordingly.

12. CREDIT FACILITIES

Credit facilities may be extended to the Company upon meeting Lake Bogoria Spa Kabarak's requirements for such facilities. Where such facilities have been extended, the Company will, subject to the credit approval terms, be permitted make reservations with a voucher, an LPO or letter of commitment bearing the authorized signature, received prior to any arrival. Subject to Lake Bogoria Spa Kabarak's prevailing credit policy from time to time, invoices shall be raised in the nominated currency, weekly, monthly or at the end of guest stay at Lake Bogoria Spa Kabarak. On any account where details of payment have not been specified, payment terms will be applied in accordance with this agreement terms.

13. EXCHANGE RATE

Foreign currency exchange will be at Lake Bogoria Spa Kabarak's prevailing rate at the time of guest stay

14. DISPUTES

Any dispute regarding an invoice must be received by Lake Bogoria Spa Kabarak's finance department within seven (7) days of the invoice date, failure to which the Company will be liable for the full invoice. The dispute will be considered and the Company notified of Lake Bogoria Spa Kabarak's

determination of the disputed amount. On determination of the disputed amount, only the amount in dispute may be adjusted on the invoice and payment will be due within seven (7) days of the adjusted invoice. It is expressly agreed and declared that any disputes, action or other

15. DEFAULT

Without prejudice to any other rights available to Lake Bogoria Spa Kabarak, in the event of default in payment of undisputed invoices and resolved invoices, Lake Bogoria Spa Kabarak reserves the right to refuse the Company's clients admission into and use of Lake Bogoria Spa Kabarak's facilities until payment is made in full. Rates quoted in this agreement are subject to the Company not defaulting as against the agreed schedule of making payments. Where delays in payment by the Company occur, the terms of Contract are in Lake Bogoria Spa Kabarak sole discretion subject to change and may lead to withdrawal of credit terms previously extended to the Company.

16. CONSISTENT DEFAULT

Consistent default shall constitute cause for termination of this agreement. The Company shall be considered to be in a condition of CONSISTENT DEFAULT where invoices submitted have not been paid in full for a period exceeding 60 days.

17. COLLECTION FEES

The Company agrees to pay any and all fees, court costs and other expenses incurred by Lake Bogoria Spa Kabarak in the collection of unpaid invoices and/or returned cheques.

18. SUSPENSION OF OBLIGATIONS

Lake Bogoria Spa Kabarak shall not be held responsible in the event, and to the extent, that the performance of this agreement is delayed or prevented by any cause beyond its control, including "Acts of God" and circumstances not due to its fault or negligence. In such circumstances Lake Bogoria Spa Kabarak shall be relieved of its obligations under this agreement.

19. CANCELLATION OF AGREEMENT

Lake Bogoria Spa Kabarak reserves the right at any time, by giving notice in writing, to cancel this Agreement should the Company fail to fulfil the above terms and conditions. Upon such cancellation all sums outstanding from the Company shall be immediately due and payable.

20. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of Kenya.

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We are confident that the tranquillity of our facilities and numerous recreational activities will provide your guests with the perfect environment to relax and unwind, however our greatest amenity is the personalized service your guest will receive. This agreement is issued in two copies and the company is kindly requested to sign, date, initial all pages, stamp both copies and return one copy to our office. The agreement will only become effective upon receipt of the completed signed copy.

Sincerely

On behalf of;
Lake Bogoria Spa Kabarak
(Signature)

Name:
Title:
Date

On behalf of;
Bountiful Safaris
(Signature)

Name:
Title:
Date:

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